

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E

**DEFENDANT’S NOTICE OF SUPPLEMENTAL RECORD CITATIONS IN
SUPPORT OF OMNIBUS RULE 1.530 MOTION (COUNTS 1–7 & 9–11)**

Defendant, pro se, respectfully files this Notice of Supplemental Record Citations to assist the Court in resolving the pending Rule 1.530 Motion to Alter or Amend, or for Rehearing (Counts 1–7 & 9–11). This Notice does not expand the relief requested; it identifies already-filed record materials that bear on ownership/authority assertions referenced in the Final Judgment’s non-monetary directives (including Count 11).

I. Targeted record points (identity/authority of “Toke”) relevant to non-monetary directives

1. No response to Removal ¶6 (June 25, 2018).

In Defendant’s Notice of Removal to U.S. District Court (filed June 25, 2018), ¶6 stated that the complaint named “Toke Oil and Gas, Inc.”

[sic], which did not exist (no record in the Florida Department of State, Division of Corporations), had been fraudulently joined, and that “as a fictitious entity, the citizenship of this plaintiff, if any, should be disregarded” for purposes of 28 U.S.C. §§ 1332, 1441(b). Plaintiffs did not move to remand or otherwise timely contest ¶6 during the removal period.

2. Later “scrivener’s error” label change without corporate proofs (Sept. 18, 2018).

Three months later, Plaintiffs filed a “Motion to Correct Scrivener’s Error in the Case Style Regarding Plaintiff,” asserting the “actual legal name is Toke Oil and Gas, S.A.” [sic]. That motion attached no certified registry extract, no certificate of status/good standing, no governing-law identification, no incumbency/authority certificate, and no chain-of-title for any right asserted.

2A. Repeated on-the-record requests preceded the “scrivener’s error.”

Between June 25, 2018 (Removal ¶6) and Plaintiffs’ September 18, 2018 filing, Defendant repeatedly requested that Plaintiffs produce competent corporate proofs for any “Toke” entity—i.e., a certified

registry/certificate of status, governing-law identification, incumbency/authority certificate, and any chain-of-title documents. No such proofs were furnished. Plaintiffs' first response was the label-only "Motion to Correct Scrivener's Error," which attached none of those items.

2B. Defendant's Aug. 22, 2018 Answer squarely raised "Toke" existence and authority—unanswered.

In his Answer filed Aug. 22, 2018, Defendant pleaded that the second plaintiff "Toke Oil and Gas, Inc." [sic] does not exist (no record at the Florida Department of State) and that its capacity/authority to sue was unclear; he also noted summons papers listing a private residence as the corporate address and that no board approval was disclosed for suing a sitting director. Defendant further explained that a similarly named "Toke Oil & Gas S.A." in Timor-Leste ceased around 2013, and that the company had two directors only, including Defendant—raising the question how one director alone could authorize suit against the other. No responsive filing addressed these points before Plaintiffs' later, label-only "scrivener's error" motion.

2C. Address mismatch underscores that identity, citizenship, and authority were never proven.

Across Plaintiffs' papers—including the summons—the listed address for "Toke Oil and Gas" appears in Pensacola, Florida (e.g., 431 E. Zaragoza St., Unit B, Pensacola, FL 32502, a private residence), not in any foreign jurisdiction. Despite repeated defense requests since 2018, Plaintiffs have never provided a foreign registered/principal office address, governing-law identification, or certified corporate status for any "Toke" entity. This domestic address listing (at a private residence) is inconsistent with the later "S.A." label and further confirms there is no competent record proof of "Toke's" existence, citizenship, or authority.

3. Punctuation discrepancy confirms lack of corporate records.

The founding instruments from Timor-Leste identify the entity as **"Toke Oil and Gas S.A."** (no comma). Plaintiffs' motion styled the name **"Toke Oil and Gas, S.A."** [sic]. The punctuation discrepancy, together with the absence of any corporate proofs, indicates identity/authority was not established in the record.

4. Federal phase, then remand three years later on "Toke"

citizenship.

The case proceeded in U.S. District Court and was resolved in Defendant's favor. A few months later later, on appellate proceedings, the matter was remanded to State Court on the citizenship of "Toke"—still without Plaintiffs having filed competent corporate proofs of existence or authority.

II. Why these citations matter to the pending 1.530 motion

- The Final Judgment's non-monetary directives (including Count 11 "turnover" of domains/passwords/data) presuppose that Plaintiffs—or the entity they invoke—have ownership/authority in the first place. Where identity/authority for "Toke" has never been established by competent record evidence, any directive premised on such ownership risks being overbroad, vague, or impossible as applied to a non-party or non-existent claimant.
- **Rule 1.610(c)** demands reasons + reasonable-detail specificity; "turnover" must be limited to items within possession/custody/control (cf. 1.350), enforced under 1.570, and any contempt requires a present-ability finding (Bowen v. Bowen, 471 So. 2d 1274, 1277–78 (Fla. 1985)). The record citations above underscore the need to

rehear and clarify/narrow Count 11 and any related directives to conform to the actual record and to avoid contempt issues.

- Separately (as previously briefed), the prejudgment interest entry (\$290,461.73) lacks dates/rates/method and should, at minimum, be accompanied by a filed schedule or be stricken.

III. Relief requested (as in the pending 1.530 motion)

Defendant respectfully asks the Court to:

1. Grant rehearing and alter or amend the Final Judgment to (a) clarify and narrow non-monetary directives (including Count 11) to property specifically identified and proven to be within Defendant's possession, custody, or control, and (b) require Plaintiffs to file a prejudgment-interest schedule (dates/rates/method), or strike the prejudgment-interest line if none is filed within a fixed time; and
2. Make written findings sufficient to contempt-proof any prospective directive.

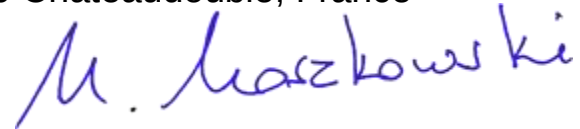
Respectfully submitted this 16th day of September, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 16th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

